SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 December 11, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): Derrick L. Beverly (Self-Represented)

NATURE OF PROCEEDINGS: Hearing on Ex Parte Application for temporary stay

The matter is called for hearing.

The Court has read and considered all documents filed herein connection regarding Defendant's Ex Parte Application for temporary stay.

Counsel for Plaintiff appears in opposition.

Parties are given the opportunity to argue.

After reading and considering all moving papers filed, and hearing oral argument, the Court makes its Final Ruling as follows:

The Ex Parte Application for temporary stay filed by Derrick L. Beverly on 12/11/2025 is Denied.

Defendant brings an Ex Parte Application with regard to a default judgment that was entered on November 29, 2022, and enforced by lockout on January 2, 2023. However, the relief sought by Defendant is not only vague, but he provides no factual support or testimony by way of declaration or affidavit to support his position. There is reference to a Declaration of Derrick Lamont Beverly along with references to other Declamations and Exhibits A-H, none of these purported documents were submitted in support of Defendant's present current Ex Parte Application.

Moreover, there is no declaration of notice for the Ex Parte Application. Based on the failure to file a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, Defendant's Ex Parte Application is denied.

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The court has received numerous Ex Parte Applications filed by Defendant, each of which seeks no specific meaningful relief, were not supported by any facts, authority, declarations, or affidavits, and were not accompanied by a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, and as set forth in this Court's 5th Amended Standing Order, dated June 1, 2021.

On October 21, 2025, the Court provided that should Defendant file another Ex Parte Application that fails to provide any specific relief sought, fails to provide proper notice, or results in a denial based on such procedural grounds, this court will consider setting a hearing on an Order to Show Cause re Sanctions upon Plaintiff's request. As Plaintiff has made such request, this Court orders a hearing on an order to show cause as to why sanctions should not be imposed upon Defendant for filing numerous inappropriate and insufficient motions to set aside judgment as follows:

Order to Show Cause Re: Sanctions Against Defendant is scheduled for 01/20/2026 at 08:30 AM in Department 91 at Stanley Mosk Courthouse.

Plaintiff is ordered to serve and file any briefs, declarations, and supporting documents with regard to this order to show cause hearing no later than January 8, 2025, close of business (5:00 p.m.).

Plaintiff to give notice.